



LEAVE AND LICENSE AGREEMENT.

THIS AGREEMENT made this 1st day of February, 2025 (Two Thousand Twenty Five);

BETWEEN

SHIKHA HALDER (AADHAAR NO. 6350 8717 6249), daughter of Khagendra Nath Mondal, by faith Hindu, residing at RGM 18 Mathpara, Gobinda Nibas, Hatiara, Dist. North 24 Parganas, West Bengal-700157, hereinafter called and referred to as the **FIRST PARTY/LICENSOR** (which term or expression shall unless repugnant to the context to the subject be deemed to mean and include his heirs, successors, legal representatives, administrators assigns) of the **ONE PART**;


REKHA TEWARI
NOTARY
Regn. No. - 10288/13
C.M.M's Court
Kolkata

28 JAN 2025

the following terms and conditions in writing.

REKHA TEWARI
NOTARY
Regn. No. - 10288/13
C.M.M's Court
Kolkata

28 JAN 2025

49088

13 NOV 2024

DATE.....

SOLD TO.....

ADDRESS.....

RS.....

13 NOV 2024

Pradip Kumar Das
Advocate
Calcutta High Court

CODE NO. (1067)
LICENCED NO.
20 & 20A / 1973

ANJUSHREE BANERJEE
L. S. VENDOR (O.S.)
HIGH COURT, KOLKATA, 700

13 NOV 2024



-AND-

DIPANKAR POLLEY (Aadhaar No. 7190 6255 3224), S/o. Prabhash Polley, by faith Hindu, residing at Peyara Bagan, 50 Liluah, Howrah-711114, hereinafter called and referred to as the **SECOND PARTY/LICENSEE** (which term or expression shall unless repugnant to the context to the subject be deemed to mean and include his heirs, successors, legal representatives, administrators assigns) of the **OTHER PART**.

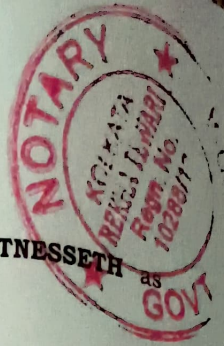
WHEREAS the First Part / Licensor is the lawful owner in respect of one shop room being No. S3/1 in Block-A measuring about 4'-10" X 26'-10" more or less at premises at 23, Canal Street, Kolkata-700048, hereinafter referred to as the "**Said Shop room**".

AND WHEREAS the Second Party/Licensee approached the Licensor/First Party with a proposal to grant him License/Permission for running a business of automobile (Bike) mechanic from the said shop room at the premises at 23, Canal Street, Kolkata-700048 for commercial purpose for a temporary period of 11(eleven) months commencing on and from 01-02-2025 and ending on 31-12-2025.

AND WHEREAS the Licensor/First Party herein have accepted the proposal of the Licensee/second party for allowing him temporary use and occupy the said shop room strictly upon Leave and License basis and thus both the parties herein have mutually agreed to reduce upon the following terms and conditions in writing.

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Kolkata-700001

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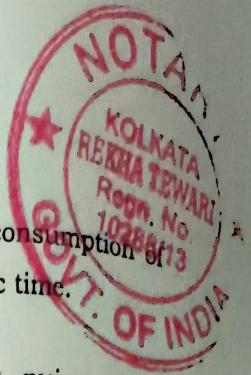


NOW THIS INDENTURE OF AN AGREEMENT WITNESSETH as follows:-

- 1) The licensor hereby allow the Licensee for commercial purpose on leave and licensee basis to use the ground floor of the said shop room for his commercial purpose for a period of 11 (eleven) months, situated and lying at 23, Canal Street, Kolkata-700048 from the date execution hereof in the first instance.
- 2) That Licensee shall pay in cash to the licensor a sum of Rs.8,000/- (Rupees eight thousand only) per month as license fee for occupation of the said unit payable in advance by the 7th day of each month.
- 3) That at the time of execution of this license agreement the licensee above named to pay a sum of Rs.16,000/- (Rupees Sixteen Thousand only) to the licensor as interest free security deposit, and it will be refundable to the licensee without interest when the licensee will hand over the said licensed portion to the licensor.
- 4) The licensee agree to vacate the said licensed shop room on the expiry of 11 (eleven) months from the date of execution of this agreement, this agreement shall be automatically terminated and no notice shall be required to be given for vacating the said Licensed portion on or before schedule date of expiry.
- 5) That the License is given on a personal basis and the licensees will not be entitled to transfer the benefit of this agreement or give sub-license to any person or persons or institute or not to sub-late, transfer or assign the occupation right and/or occupied portion of the said shop room or it's any part to anybody or any person/persons not shall allow the said occupied portion to be used or occupied by anyone nor even to carry any other businesses therefrom.

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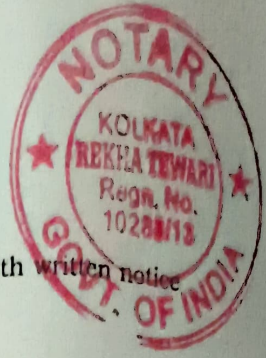
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- 6) The licensee shall pay the electricity bill as per consumption of the meter to the Electric Department within specific time.
- 7) The licensee shall not allowed to cause any nuisance or annoyance to the neighbors or allowed to store any hazardous, articles or goods and things in and around the occupied portion of the building or do anything, which would damage the premises or jeopardise others.
- 8) That the Licensee shall not make any addition and alteration, damage of the doors, windows, floors and walls of unauthorised machinery works at the said licensed portion and shall not change nature or character of the licensed portion.
- 9) The licensee undertake not to cause any damage or defacement of the ceiling, walls or floors of the licensed portion and if causes licensee will transfer that to the future condition either licensor shall transfer to its future condition and the costs will be bear by the second party / Licensee or shall be deducted/ adjusted with the security deposit amount given by the Licensee to the licensor.
- 10) The Licensee shall not neither allowed to commit any illegal act or activities nor deport anything which is illegal or obnoxious or combustible or dangerous or violating the law of the land anyhow and if do so, the Licensor may terminate the license agreement, shall take the proper legal steps, inform to the Police Station or to the proper authority.
- 11) That on any breach of any of the terms of the agreement the licensor will be entitled to terminate the license on giving seven days' notice.
- 12) That if the Licensee wants to leave/terminate this agreement before the expiry of the agreement then he shall give two months written notice to the Licensor and if the Licensor wants to get back the licensed portion for the urgent need and/or requirement, may terminate the said agreement before expiry of

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the agreement then licensor has to give two month written notice to the licensee.

- 13) That on termination of the license agreement and/or on expiry period of license agreement, Licensee shall make over vacant and peaceful possession of the licensed portion to the licensor in good condition and if failed Licensor may take proper legal step to vacate the said possession before the competent Court of Law.
- 14) That both Parties hereby confirms that they have no relations as Landlord and Tenant as contemplated in the West Bengal Premises Tenancy Act, 1956, nor they will claim under any circumstances nor the parties have entered into agreement with such intention. Similarly, this agreement under no circumstances can be construed as transfer as contemplated in the Transfer of Property Act.
- 15) That nothing contained herein shall be constructed as creating any right, interest, easement, tenancy or sub-tenancy in favour of the licensees over or upon the licensed portion or any part thereof or transferring any interest therein in favour of the licensees other than the permissible right of use hereby granted.

IN WITNESS WHEREOF all the parties set and subscribed their signature and seal on this Leave and License Agreement on the day, month and year first above written.

Witnesses:-

1.

.....
Signature of the licensor

2.

.....
Signature of the licensee

Indipkalyi
Janak
28/01/25

ATTESTED SIGNATURE ONLY
BEFORE ME ON IDENTIFICATION

REKHA TEWARI
NOTARY

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